Form No:HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Case No Crl.Misc.No.2446-H of 2020

Mst. Kausar Mai **Versus** SHO, etc.

S.No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
	28.02.2025	M/s Rana Muhammad Ashraf Jameel and Malik Tahir Iqbal, Advocates for the petitioner. Sardar Mehboob and Muhammad Ramzan, Advocates for respondent No.1. Malik Mudassir Ali, Deputy Prosecutor General along with Hassan Raza Khan CPO, Rab Nawaz SP, Naeem SP, Hakim Ali DSP (legal), Ibrar Inspector and Sabir S.I. Through the instant petition under Section 491 Cr.P.C, the petitioner seeks recovery of her husband Shabbir Ahmad and her relative Fayyaz Hussain from the illegal, improper and unlawful detention of respondent No.1/SHO Police Station Basti Malook, District Multan. 2. Briefly, the facts of the case are that allegedly on 16.05.2020, SHO/respondent No.1 along with other police officials on his official vehicle, raided at the residence of the petitioner and took the aforesaid detenues in his custody besides taking away the dowry articles of the petitioner's daughters including gold ornaments weighing 2 ½ tolas and cash Rs.2,50,000/- and since then had detained them in the Police Station Basti Malook, District Multan, consequently, the petitioner approached him with a request to release the aforesaid detenues, who instead of paying any heed to her request, demanded illegal gratification. She has further averred that the alleged detenues are neither involved nor required in any criminal case and since 16.05.2020, they

have not even been produced before any court of law and as such the custody of the alleged detenues with the respondents is illegal, hence this criminal miscellaneous petition.

3. Arguments heard and record perused.

4. According to the order sheet, on 21.05.2020, the Court was apprised that both the alleged detenues were formally arrested in a criminal case, but one of them namely Shabbir Ahmad had met his death last night during an attack launched by his cronies while he in pursuance of disclosure was being taken for effecting recovery of a rifle. SHO/Inspector Ibrar has stated that in this regard a separate criminal case vide F.I.R No.380 dated 20.05.2020, offence under Sections 302/324/353/ 186/224/225/148/149 PPC has already been registered at Police Station Basti Malook, District Multan.

5. In response to a Court query, he concedes that neither the departure of the police party from the Police Station along with Shabbir Ahmad (deceased) nor its return has been incorporated in the daily diary maintained at the Police Station. This fact was brought to the notice of CPO Multan, who has removed/transferred Ibrar Hussain Inspector/SHO along with all other officials whose names figure in the above referred F.I.R from their respective postings to ensure the fair investigation of the case. The matter was adjourned to 04.06.2020. On 04.06.2020, Muhammad Ibrar SHO/ Inspector, in response to a query, apprised that all the entries made in the daily diary during a month are subsequently collected and preserved in a binding shape and admitted default in maintaining the station diary/ roznamcha in terms of Chapter 22 of the Police Rules, 1934, therefore, a notice was issued to Muhammad Ibrar

Inspector/SHO with a direction to submit a detailed report/reply. Furthermore, in compliance with the order dated 22.06.2020, whereby this Court issued a direction to Senior Superintendent of Police, Investigation, Multan to submit intimation to the I.G Punjab for issuance of SOPs/orders so that the order for maintaining the manual roznamcha may be complied with throughout the Punjab, Inspector General of Police, Punjab submitted his report along with copy of Notification dated 15.12.2017 regarding the amendments in the Police Rules, 1934 and copy of letter containing S.O.Ps for online F.I.R and daily diary.

6. Learned counsel for the petitioner, after perusing the report/comments, submits that a Judicial Inquiry regarding the murder of petitioner's husband (the alleged detenue Shabbir Ahmad) in the alleged fake police encounter is being conducted by the learned Sessions Judge, Multan, the petitioner would like to join the aforesaid inquiry proceedings, however, appropriate directions may be issued for future. Since the complaints against the Police for detaining the people illegally without showing their formal arrest, even in the cases they are required to the police, without maintaining the daily diary also are quite common, therefore, I feel it appropriate to issue certain guidelines for future.

7. The word **'Police'** is derived from the Greek word 'Polis', which means a city. According to ***Black Law dictionary Tenth Edition*** **"Police**" means the Government department charged with the preservation of public order, promotion of public safety, and prevention and detection of crime. According to ***New Webster dictionary 1992***, a department of government responsible for the preservation of public order, detection of crime

and enforcement of civil law. For regulation and *to re-organize the police to make it a more efficient instrument for the prevention of the crime* in British India, **The Police Act (Act V) of 1861** was promulgated. Under Section 1 of this **Act,** all persons enrolled under this Act were included in the definition of "**Police**". This Act remained in force till 2002. It was repealed and substituted by the **Police Order, 2002** (hereinafter to be referred as Police Order) wherein **"Police"** has been defined under **Article 2 (xix) that** '**Police or Police Establishment'** *means the police referred to in Article 6* ***[separate police establishment for each general police area]*** *and includes all persons appointed as special police officers or additional police officers and all other employees of the police*. **Police Officer** has been defined **in Article 2 (xviii)** a *member of the police who is subject to this Order;* **Police Station has been defined in S.4(s) of Cr.P.C** *which means any post or place declared, generally or specially, by the [Provincial Government] to be a police-station, and includes any local area specified by the [Provincial Government] in this behalf.* **Officer in charge of the police station** commonly called as **SHO (Station House Officer)** as per **Rule 22.1 of the Police Rule 1934,** which have also been saved under Article 185 of the Police Order, 2002, ordinarily a sub-inspector who, in brief, is primarily responsible for effective management, discipline, crime control, execution of police duties, maintenance of records and upholding law and order, in addition to necessarily gaining detailed local knowledge, securing cooperation from community leaders (zaildars, inamdars, village headmen, chaukidars) and encouraging them to provide information and assistance**. S.4 (p) Cr.P.C.** defines "**Officer incharge of**

a police-station." *includes, when the officer incharge of the police-station is absent from the station-house or unable from illness or other cause to perform his duties, the police-officer present at the station-house who is next in rank to such officer and is above the rank of constable or, when the [Provincial Government] so directs, any other police-officer so present.*

8. **The Station Diary, or "roznamcha," is a crucial record maintained in every police station**, documenting daily events and activities. It serves as the primary record of police affairs, ensuring effective monitoring, regulation, and accountability in discharge of duty. This diary records all major and minor incidents within the station's jurisdiction, balancing the rights of the accused, victims, and society. While some entries are expanded in other records, all significant details must be included. As a chronological log, it provides essential evidence for verifying the timing of police actions. As per Police Rules, 1934, **Station Diary or daily diary** is **Register No.II** of the Police Station which initially was maintained in accordance with section 44 of the Police Act 1861 **(since repealed),** according to which "*it shall be the duty of every officer in charge of a police station to keep a general diary in such form as shall, from time to time, be prescribed by the [Provincial Government] and to record therein all complaints and charges preferred, the names of all persons arrested, the names of the complainants, the offences charged against them, the weapons or property that shall have been taken from their possession or otherwise, and the names of the witnesses who shall have been examined"* and by now in compliance with Article 167 of the Police Order 2002, which reads as ***"167. Maintenance of Daily Diary at a***

police station.– (1) *A register of Daily Diary shall be maintained at every police station in such form as shall, from time to time, be prescribed and to record therein the names of all complainants, persons arrested, the offences charged against them, the weapons or property that shall have been taken from their possession or otherwise, and the names of the witnesses who shall have been examined.* ***(2) The District and Sessions Judge of the district may call for and inspect such Diary,*** and Rules 48 & 49 of Chapter 22, Volume III of the Police Rules, 1934, **in Form 22.48(1)** i.e.

FORM No. 22.48(1)
REGISTER No. II. - THE STATION DAILY DIARY.

STATION _____ DISTRICT _____

The following officers were present at morning roll-call _____Sub-Inspector_____Assistant Sub-Inspectors _____head constables_____constables_____mounted head constables _____mounted constables. The remaining staff were _____on duty_____sick. The station is _____ under/over sanctioned strength.

Remarks_____

Diary of the above station commencing at _____O'clock on the_____and ending _____O'clock on the _____

Serial No.	Name of reporter	Substance of report

Signature of_____

through a carbon copy process, **in duplicate; one copy** remains at the police station, while **the other** is sent daily to a designated Gazetted Officer or the Superintendent of Police. The Superintendent issues diary books quarterly and sets closing hours based on dispatch schedules. Entries, made by the officer in charge or the station clerk, must be recorded promptly, numbered sequentially, and time stamped. If the time of receipt differs from the entry time, both are noted. Literate officers verify and sign

their reports, and each entry is marked off with a line. The opening entry each day shall give the name of each person in custody, the offence of which he is accused, and the date and hour of his arrest, the name of each accused person at large on bail or recognizance and the date of his release on such security. The last entry each day shall show (a) the balance of cash in hand as shown in the cash account, and (b) the balance of the cattle-pound account. **Rule 22.49** requires that following matters shall, amongst others, be entered in daily diary (**a)** details of cattle seized in connection with cases or on suspicion, including case/ report references; (**b)** the day, hour, purpose, and names of persons registered under the Criminal Tribes Act, released convicts, or those under specific legal provisions; (**c)** arrival and departure times of all police officers, their duties, and ensure the entry is attested by the officer; (**d)** movements and duties performed by officers of head constable rank or above outside the police station (excluding investigations with case diaries), (**e)** all admissions to and releases from the cattle pound, including fines collected; (**f)** the receipt and dispatch of communications, property, cash, etc., with references to correspondence register numbers; (**g)** information on non-cognizable offences, potential breaches of peace, chaukidar visits, and inter-jurisdictional police assistance requests; (**h)** all arrivals, dispatches, admissions, and removals of persons in custody or lock-ups, noting exact times; (**i)** the receipt, service, execution, and return of legal processes with exact dates and times; (**j)** report regarding property in the storeroom as per rules 22.15 and 22.18(2); **(k)** report of excess expenditure over the permanent advance as per rule 22.71; (**l)** entries of persons permitted into a tahsil

treasury after office hours; (**m)** deposits or removals from the post office safe, detailing the articles and exact times, signed by the Postmaster; (**n)** all information on cognizable offences, actions under Section 157 Cr. P.C, and FIR details. Include measures to inform Panchayats if applicable; (**o)** list of all papers pending for over a week in Monday's diary. Rule 22.50 provides the punishment for false entry that if any police officer who enters or causes to be entered in the daily diary a report which he knows, or has reason to believe, to be untrue, whether he has or has not been directed to make such entry by a superior officer, shall ordinarily be dismissed from service. Daily diaries as per Rule 22.51 may be destroyed two years after the date of the last entry. **Besides other duties as per rule 22.4 (c) The station clerk** *(Rule 22.3: The police station clerk is a literate head constable, who under the control and supervision of the officer in charge of the police station, acts as clerk, accountant, record-keeper and custodian of Government and other property at a police station. He may be assisted by one or more assistant clerks)* ***writes up the daily diary and other station house registers. He sees that the file of the Police Gazette is kept up to date, and that all orders and notices contained in it, which concern the staff or the work of the staff, are carefully noted and explained to all concerned. He registers all births and deaths reported at the station by the village watchmen. Notably,*** the amendments were made in rules 22.3 and 22.4 of Chapter XXII of Police Rules, 1934 Vide Notification dated 15.12.2017 under:-

22.3 Station Clerk:- (1) A Station Clerk shall:

(a*) be a literate head constable or IT literate officer*

In rule 22.4 for clause (a), the following shall be substituted

(a) He shall:

(i) maintain hard as well as soft copy (electronic copy) of the registers as per order of the Provincial Police Officer;

9. It appears that in pursuance of afore amendments Police Station Record Management System (PSRMS) is being used for computerization of daily diaries of police station, developed by the Punjab Information and Technology Board, Lahore (PITB), by using Wide Area Network (WAN) networking to interlink all police stations record by taking services of PTCL/NTC, Wireless and other Cellular companies. According Rules, 22.4 (a) "Station Clerk will maintain hard as well as soft copy (electronic copy) of the registers as per orders of the Provincial Police Officer" In this regard, a detailed SOP for online FIR and Daily Diary has already been developed and circulated by the Deputy Inspector General of Police, Information Technology, Punjab, Lahore vide his office No. 3516/PS-DIG-IT, dated 01.03.2017 which is being implemented in its true letter & spirit. The online entries of daily diaries/roznamcha cannot be edited after the expiry of 08 hours. The online system of daily diaries (roznamcha) of Police Stations is linked with the offices of SHOs, DSP/ SDPOs, SSP, DPOs, RPOs and Inspector General of Police, Punjab, Lahore. They can open and see the entries of daily dairies of Police Stations of their respective area of Jurisdiction.

10. This Court in view of importance of daily diary had ruled in case of *"Mst. ASMAT PARVEEN vs. The*

STATE and another **(PLD 2021 Lahore 105)** that despite amendment made in rule 22.4 maintaining of manual roznamcha has not been prohibited rather it delineates that in addition to hard copy, soft copy (electronic copy) of the registers shall be prepared. Direction was issued to Inspector General of Police, Punjab/Provincial Police Officer to immediately issue instructions to the police hierarchy throughout the Punjab to start/keep maintaining manual roznamcha waqiati as per previous practice, besides the electronic copy. Failure to maintain daily diary/roznamcha is a clear violation of Article 167 of the Police Order, 2002 and Police Rules, 1934 which not only renders the diary entries unreliable and untrustworthy but also hampers judicial processes, as courts frequently rely on these records to extract crucial information for fair case resolutions. Deliberate omission of entries in the diary is often aimed at concealing misconduct within police stations especially where arrests are not recorded to bypass the 15-days custody limit under Section 167(2) of the Cr.P.C., blatantly violating Articles 9 and 10 of the Constitution, which safeguard the right to life, liberty, and due process. Such practices not only deprive individuals of their fundamental rights but also erode public confidence in law enforcement. The Court underscored the urgent need for accountability and strict compliance with legal provisions to uphold the rule of law and restore faith in the justice system. Reliance may be made upon the case of *"Khatoon Bibi vs. The State and others"* **(2021 P.Cr.L.J 593)**. To curb down the illegal practice of police officials qua the arrest and production of accused before learned Area Magistrate following directions were issued in case of

"Qari MUHAMMAD ATTA ULLAH vs DISTRICT POLICE OFFICER, SIALKOT and another" **(PLD 2022 Lahore 224**):-

> *i) Whenever, a person is arrested in any case, his arrest be incorporated forthwith in computerized as well as manual roznamcha with date and time;*
> *ii) Similarly, when an accused is taken out from the police station for any purpose, a rapat should be written in this regard, vice versa on his return this practice should be adopted;*
> *(iii) To make the process of entry in roznamcha transparent, it is ordered that entries in manual roznamcha (register No.2) be made through ball-point.*
> *(iv) More so, when the accused will be produced before the learned Area Magistrate for the physical or judicial remand, date and time of arrest must has been mentioned in the application for obtaining remand and in case of failure, learned Area Magistrate should refuse to entertain request of remand.*
> *(v) Police file/ case diaries should be retained at police station as provided in Rule 25.55 (3) of Police Rules, 1934 and whenever the investigating officer will proceed along with police file of case from police station for the purpose of investigation or any other purpose that facts should be incorporated in the roznamcha (register No. 2) and on return the same practice be also adopted, other than this, police file must be retained at police station.*
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> *Any defiance of supra mentioned directions, would amount to contempt of court and delinquent official/officers will also be proceedable under section 155-C of Police Order, 2002.*
>
> *All the learned Sessions and Special Judges of the province are duty bound to check register No. 2 in the light of Rule 167 of Police Order, 2002.*

In the case of *"Muhammad Tariq v. Station House Officer, Police Station Saddar Jampur and*

another" **(2019 P Cr. L J 1403),** while highlighting the advantage of use of modern devices specially the computer, it was observed that

> "*No doubt in the present days of life the computer is a great blessing and after initial invention of the same, it was modernized day by day and its use was made applicable for multi purposes. Visualizing the requirement of offices, different software's /programs were developed, whereby official record was computerized and now the computer is being used almost in every office without any impunity. Now a days data of different institutions is being connected to main server. Perhaps the purpose of this effort is to facilitate the general public so that a common person of the society may have access to different datas for getting first hand knowledge in every sphere of life. In this scenario, it can safely be presumed that the purpose of computerizing the police stations and connecting them with online system is to facilitate the public so that wrong done to any person is remedied and his grievance is redressed immediately, naturally because if any person feels danger to his life or liberty, he would rush to police station. But, presently it has been noticed with great concern that after launching online system in police stations there are rampant complaints relating to different police stations for the reason that manual police registers are not being maintained at all. Even there are some reports that some police officers had laid off their hands from manual entries after online entering the data in the computer for some time or even in some cases after some days. It means that before making the data online they have sufficient time to make changes in the data for some ulterior motive and they can easily cover their misdeeds/wrongs committed by them. Moreover, the data available in the computers is not fully secured and it is vulnerable due to different factors. Presently it is common practice that due to different virus attacks, data can easily be destroyed*

> *and the online data may also become victim of different hackers who have expertise in hacking the data and now a days it has become a global problem that hackers hack different websites and destroy data. In order to cope with this situation internationally cyber laws are being promulgated and in our own country cyber laws are coming into force.*
>
> *Now it is to be seen as to what safety measures can be adopted to secure the data of different police stations. There is no wrong in making the data of police stations online so that the public may have easy access to the record of police stations but at the same time we have to ensure safety of data at police stations. Before making any entry in the computer maintained at police station every movement/happening of police station must be entered in the roznamcha of police station. If any investigating officer writes police diary in the computer himself or gets it written through some I.T. literate person, before starting it he must write this fact in the roznamcha and after completing the police diary he should immediately take its print/hardcopy and maintain it in the relevant register. After taking the hard copy he should immediately write this fact in the roznamcha while mentioning the date and time. Every register of the police station as required under Police Rules, 1934 should be maintained properly before making the computer data online"*

11. Our Constitution guarantees to the fundamental rights of citizens, chief amongst those rights are ordained in Article 9 (***Security of person)*** that *"no person shall be deprived of life or liberty save in accordance with law"*. Article 14 (***Inviolability of dignity of man, etc.***) mandates that *(1) The dignity of man and, subject to law, the privacy of home, shall be inviolable. (2) No person shall be subjected to torture for the purpose of extracting evidence*.

12. The Police Order 2002, Chief Executive Order No.22 of 2002 dated 14.08.2022, was promulgated and enforced inter-alia by stating that the Police has ***an obligation and duty to function according to the Constitution, Law and Democratic aspirations of the people and such functioning of the Police requires it to be professional, service oriented and accountable to the people***. Under Articles 109 & 110 of the Order, a Criminal Justice Coordination Committee has been established in every District, comprising over head of the District Police, District Public Prosecutor, District Superintendent Jail, District Probation Officer, District Parole Officer, and head of investigation as its Secretary with District & Sessions Judge being its Chairperson to ultimately achieve the object behind the promulgation of the Order. A Sessions Judge is also Ex-officio Justice of Peace with his power under Section 22 A(6) Cr.P.C to issue appropriate directions to the police authorities concerned regarding neglect, failure or excess committed by a police authority in relation to its functions and duties. Besides, he under Section 491 Cr. P.C had Power to issue directions of the nature of a habeas corpus. It is very important to point out that under Article 167 of the Order, it has been provided that a Register of daily diary shall be maintained at every Police Station in such form as shall, from time to time, be prescribed and to record therein the names of all complaints, persons arrested, the offences charged against them, the weapon and property that shall have been taken from their possession or otherwise and the names of the witnesses who have been examined. Under sub Article 2 of Article 167, a unique power has been vested in the District & Sessions Judge of the District to

call for and inspect such diaries which contained very important information with their direct nexus with the functioning and accountability of the Police and to ensure protection of fundamental rights of the citizens. Under this Article, the Sessions Judge either ***on his own or on any information***, irrespective of the source of such information can call for the record for inspection. The proper maintenance of daily diary, being an important document viz-a-viz the working of the Police or otherwise, has a direct nexus with its functioning. The online system regarding daily diary/roznamcha of Police Stations had already been linked with the offices of SHOs, DSPs, SDPOs, SSPs, RPOs and Inspector General of Police, Punjab. They can open and see the entries of the daily diary of Police Stations of respective areas of their jurisdiction, therefore, as required under Article 167(2) of the Police Orders 2002, the office of District & Sessions Judge of the District should also be linked with the same online system. Linking the office of the District & Sessions Judge with online system would reduce the physical distance and make the inspection of the daily diary register possible on one click. Such arrangement shall not only save the time but also be a swift, meaningful and a revolutionary step towards achieving the object behind the promulgation of the Police Order and to ensure that the Police as a service oriented statutory body, regulates itself in accordance with the Constitution, law and democratic aspirations of the people. Needless to observe that all the District & Sessions Judges under Article 203 of the Constitution of Islamic Republic of Pakistan, 1973 are under the direct supervision and control of the High Court. A direction is, therefore, issued to the Inspector General of Police

Punjab, to ensure online access to all the District & Sessions Judges throughout the Punjab in line with the SOPs circulated by the Deputy Inspector General of Police Information Technology Punjab, Lahore, vide his office No.3516/PS-DIG-IT dated 01.03.2017, or any other latest digitalization method in future, within a period of three months. A compliance report shall be submitted to the Registrar of this Court.

13. These are the detailed reasons of my short order dated 06.07.2020 which is reproduced below:-

> *"For the reasons recorded in my separate detailed order of even date, instant habeas petition stands disposed of with the observation that the learned Sessions Judge, Multan will proceed with the Judicial Inquiry which has earlier been stopped vide dated 04.06.2020 in accordance with law."*

I also duly appreciate the assistance rendered by Mr. Ejaz Ahmad Sipra, Civil Judge/Research Officer to deal with the issue discussed and dealt with hereinabove.

(**Anwaarul Haq Pannun)**
Judge

APPROVED FOR REPORTING.

Judge

Siddique